

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
SENIOR JUDGE WILEY Y. DANIEL**

Courtroom Deputy: Robert R. Keech
E.C.R./Reporter: Julie Thomas

Date: January 30, 2017

Civil Action No: **13-cv-02826-WYD-CBS**

Counsel:

ELHAM SALEMI,

Plaintiff,

Darold W. Killmer
Mari A. Newman
Eudoxie Dickey

v.

**COLORADO PUBLIC EMPLOYEES'
RETIREMENT ASSOCIATION;
TIM MOORE, in his individual capacity;
and ANGELA SETTER, in her individual
capacity,**

Meghan W. Martinez
Ann C. Purvis

Defendants.

COURTROOM MINUTES

JURY TRIAL (DAY 1)

8:57 a.m. Court in Session - Jury not present

APPEARANCES OF COUNSEL.

Court's opening remarks.

8:59 a.m. Discussion regarding the fact that this case needs to be to the jury on Friday,
February 3, 2017.

9:00 a.m. Discussion and argument regarding joint statement of the case prepared by the
Court.

9:39 a.m. Discussion regarding demonstrative exhibit plaintiff intends to use in opening statement.

9:43 a.m. Court in Recess

10:02 a.m. Court in Session - Jury present

Court's opening remarks to prospective jurors.

10:03 a.m. Voir dire oath given.

10:16 a.m. Voir dire by Court.

10:42 a.m. Voir dire by Plaintiff as to juror 100306907 (Mr. Killmer).

10:44 a.m. Voir dire by Defendant as to juror 100306907 (Ms. Martinez).

10:44 a.m. Voir dire by Court continues.

12:00 p.m. Court in Recess

12:19 p.m. Court in Session - Jury present

Voir dire by Court continues.

12:58 p.m. Voir dire by Plaintiff (Mr. Killmer).

1:11 p.m. Voir dire by Defendant (Ms. Martinez).

1:21 p.m. Oral motion to challenge juror 100316410 for cause.

ORDERED: Plaintiff's oral motion to challenge juror 100316410 for cause is **GRANTED**.

1:24 p.m. Voir dire by Court continues.

Challenges for Cause:

- 1) 100312838
- 2) 100306426
- 3) 100295360
- 4) 100302144
- 5) 100283305
- 6) 100316410

Peremptory challenges by Plaintiff:

- 1) 100289190
- 2) 100320465
- 3) 100309610

Peremptory challenges by Defendant:

- 1) 100306907
- 2) 100315413
- 3) 100314843

1:31 p.m. Jury sworn to try:

- | | |
|--------------|---------------|
| 1) 100324508 | 2) 100287917 |
| 3) 100309687 | 4) 100296101 |
| 5) 100318058 | 6) 100307327 |
| 7) 100304244 | 8) 100303952 |
| 9) 100318027 | 10) 100320101 |

1:34 p.m. Court in Recess

2:49 p.m. Court in Session - Jury not present.

Discussion regarding demonstrative exhibit and the offering of stipulated exhibits.

3:00 p.m. Jury enters

3:00 p.m. Court reads preliminary jury instructions.

3:12 p.m. Opening statement by Plaintiff (Ms. Newman).

3:37 p.m. Opening statement by Defendant (Ms. Martinez).

Exhibit(s) 30, 33, 39, 70, 71, 75, 101, 104, 106, 110, A1, A8 RECEIVED.

4:08 p.m. Plaintiff's witness **Elham Salemi** sworn.

Direct examination by Plaintiff (Ms. Newman).

EX ID: 134, 13, 14, 15

Exhibit(s) 134, 13, 14, 15 RECEIVED.

4:55 p.m. Jury excused until Tuesday, January 31, 2017, at 9:00 a.m.

Discussion regarding admitting additional performance evaluations through this witness.

4:57 p.m. Court in Recess - TRIAL CONTINUED.

TOTAL TIME: 6:07